

INTELLECTUAL PROPERTY RIGHTS AND PATENTS

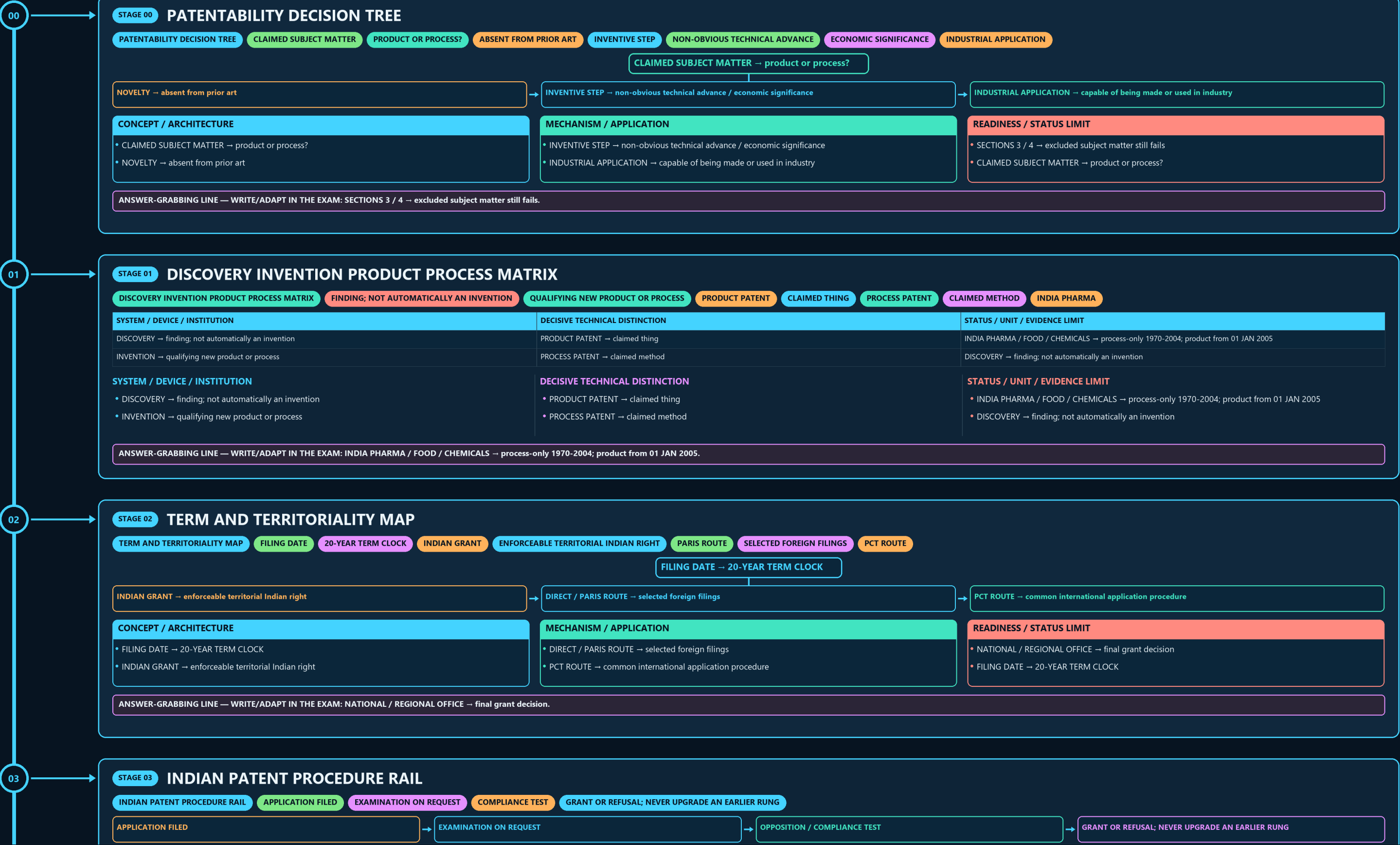
PATENTABILITY DECISION TREE → DISCOVERY INVENTION PRODUCT PROCESS → TERM AND TERRITORIALITY MAP → INDIAN PATENT PROCEDURE RAIL → INSTITUTION AND FORUM ROUTER → PUBLIC-INTEREST SAFEGUARD LADDER

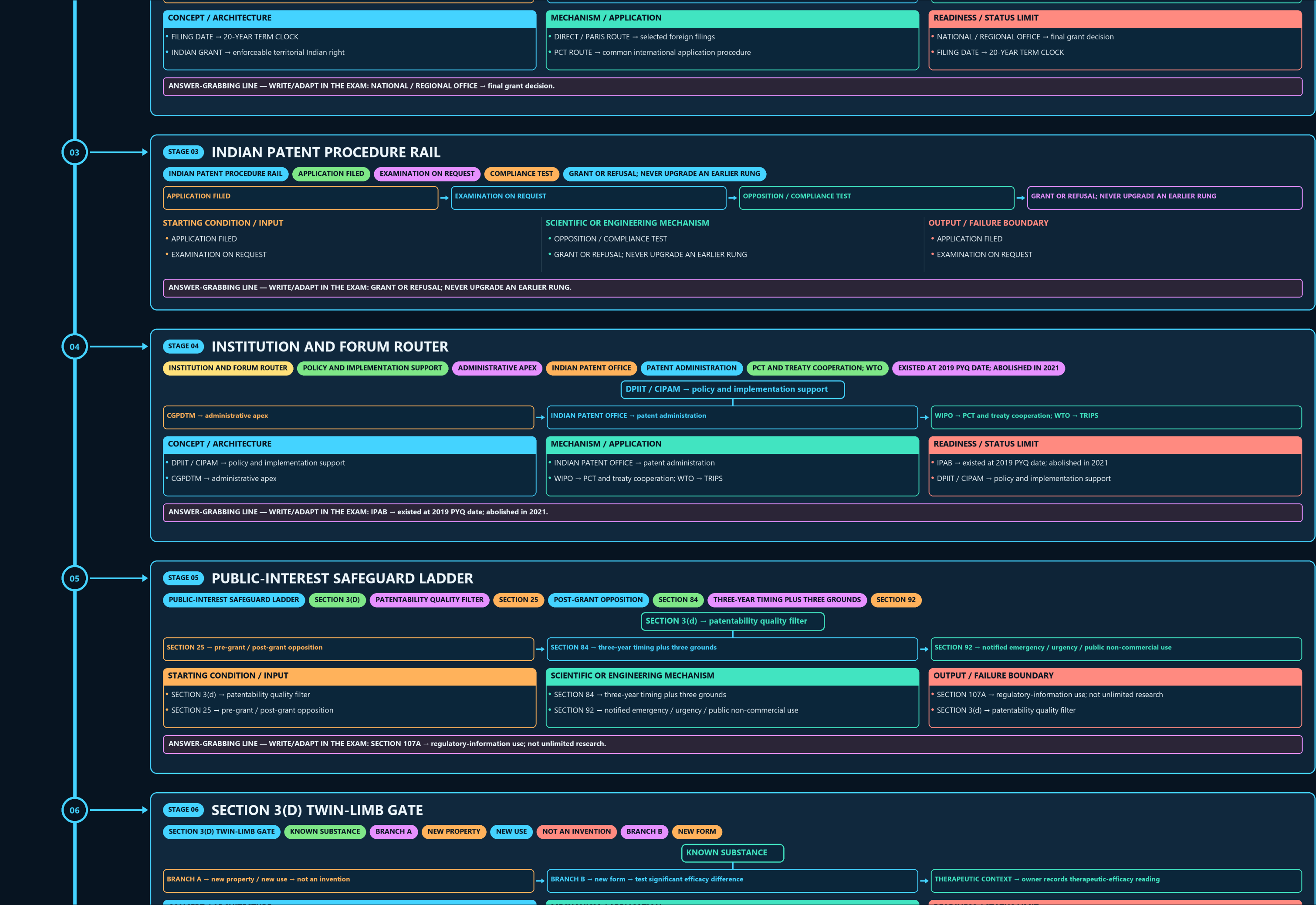
Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

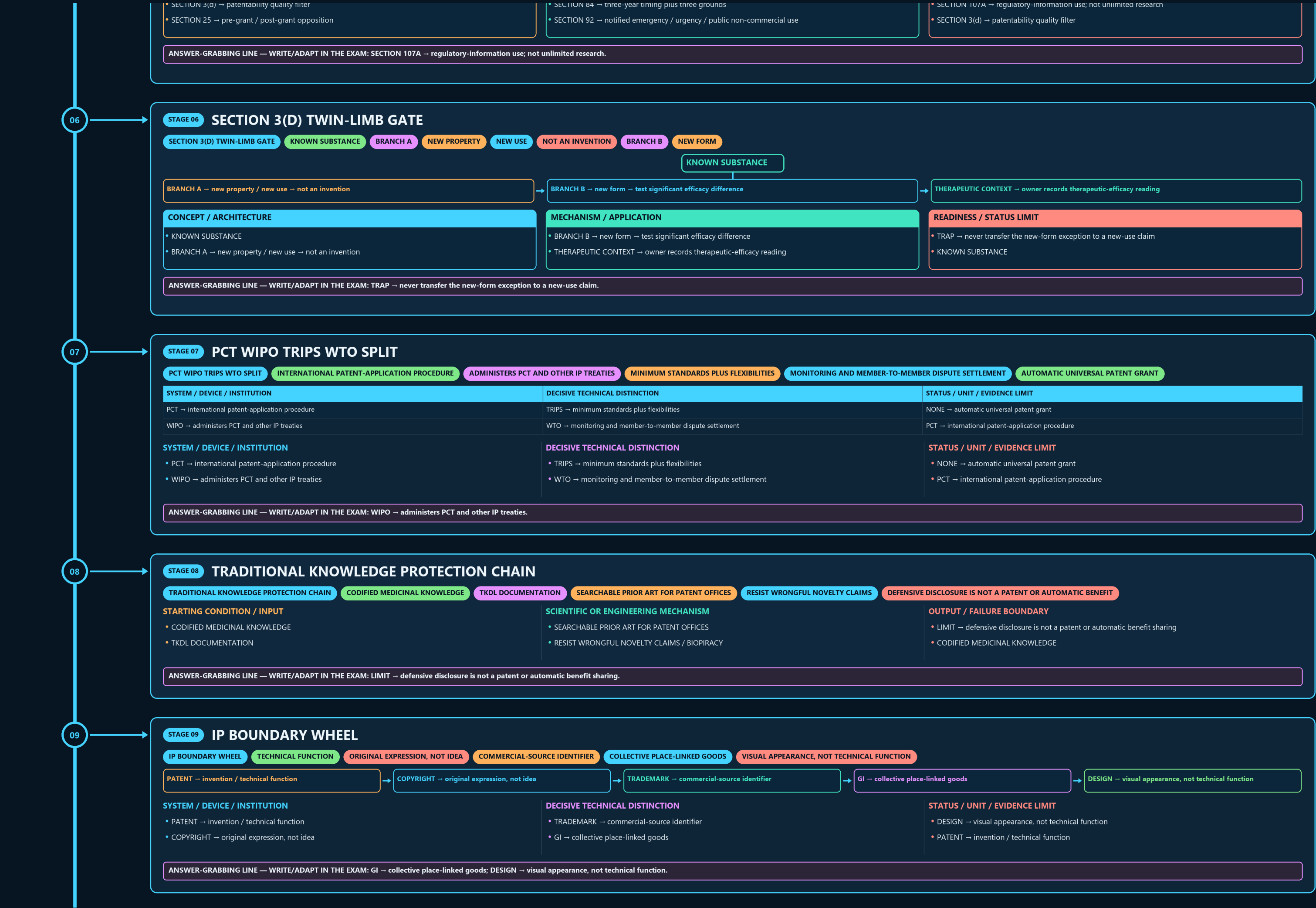
PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g1 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



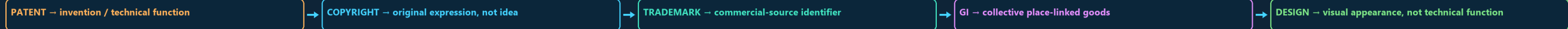




09

STAGE 09 IP BOUNDARY WHEEL

IP BOUNDARY WHEEL TECHNICAL FUNCTION ORIGINAL EXPRESSION, NOT IDEA COMMERCIAL-SOURCE IDENTIFIER COLLECTIVE PLACE-LINKED GOODS VISUAL APPEARANCE, NOT TECHNICAL FUNCTION



SYSTEM / DEVICE / INSTITUTION

- PATENT → invention / technical function
- COPYRIGHT → original expression, not idea

DECISIVE TECHNICAL DISTINCTION

- TRADEMARK → commercial-source identifier
- GI → collective place-linked goods

STATUS / UNIT / EVIDENCE LIMIT

- DESIGN → visual appearance, not technical function
- PATENT → invention / technical function

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: GI → collective place-linked goods; DESIGN → visual appearance, not technical function.

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STAGE 10 LIFE MATERIAL AND SOFTWARE FILTER

LIFE MATERIAL AND SOFTWARE FILTER SECTION 3(J) EXCLUSION PLANT VARIETY PPV&FR SUI-GENERIS ROUTE NOT INSIDE THE STATED PLANT-ANIMAL EXCLUSION SOFTWARE-LABELLED CLAIM APPLY CRITERIA AND EXCLUSIONS; NO BLANKET RULE HERE

CLASSIFY CLAIMED SUBJECT MATTER BEFORE POLICY ARGUMENT



CONCEPT / ARCHITECTURE

- PLANTS / ANIMALS / SEEDS / VARIETIES → Section 3(j) exclusion
- PLANT VARIETY → PPV&FR sui-generis route

MECHANISM / APPLICATION

- MICRO-ORGANISM → not inside the stated plant-animal exclusion
- SOFTWARE-LABELLED CLAIM → apply criteria and exclusions; no blanket rule here

READINESS / STATUS LIMIT

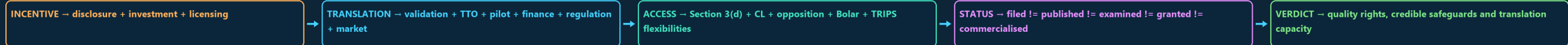
- RULE → classify claimed subject matter before policy argument
- PLANTS / ANIMALS / SEEDS / VARIETIES → Section 3(j) exclusion

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → classify claimed subject matter before policy argument.

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STAGE 11 INNOVATION ACCESS AND STATUS SPINE

INNOVATION ACCESS AND STATUS SPINE DISCLOSURE + INVESTMENT + LICENSING VALIDATION + TTO + PILOT + FINANCE + REGULATION SECTION 3(D) + CL + OPPOSITION + BOLAR + QUALITY RIGHTS, CREDIBLE SAFEGUARDS AND TRANSLATION CAPACITY



CONCEPT / ARCHITECTURE

- INCENTIVE → disclosure + investment + licensing
- TRANSLATION → validation + TTO + pilot + finance + regulation + market

MECHANISM / APPLICATION

- ACCESS → Section 3(d) + CL + opposition + Bolar + TRIPS flexibilities
- STATUS → filed != published != examined != granted != commercialised

READINESS / STATUS LIMIT

- VERDICT → quality rights, credible safeguards and translation capacity
- INCENTIVE → disclosure + investment + licensing

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → quality rights, credible safeguards and translation capacity.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT STRONG IPR DOES NOT MEAN IDENTICAL TREATMENT ACROSS ALL INDIA'S PATENT SYSTEM REFLECTS A BALANCING DESIGN IT SEEKS INNOVATION INCENTIVES WITHOUT MECHANICALLY ACCEPTING EVERGREENING OR UNAFFORDABLE EXCLUSION.

GI PROTECTION IS ALSO A DEVELOPMENT AND RURAL-ECONOMY TOOL ADMINISTRATIVE APEX WITHIN INDIA'S IP-OFFICE STRUCTURE. PATENT OFFICE, TRADE MARKS REGISTRY AND GI REGISTRY

OPTIONAL SCIENTIFIC / ENGINEERING DEPTH

- CAUTION: Strong IPR does not mean identical treatment across all IP types; patents, trademarks and GIs solve different economic problems.
- CAUTION: India's patent system reflects a balancing design: it seeks
- innovation incentives without mechanically accepting evergreening or unaffordable exclusion.
- CAUTION: GI protection is also a development and rural-economy tool, not merely a legal badge.

READINESS, UNIT OR STATUS LIMIT

- CGPDTM: administrative apex within India's IP-office structure.
- Patent Office, Trade Marks Registry and GI Registry: specialized operational arms.
- DPIIT / CIPAM: policy coordination under the National IPR Policy 2016.
- WIPO: treaty and international-cooperation layer for PCT and broader IP governance.

COMPARATIVE TECHNOLOGY / GOVERNANCE NUANCE

- WTO/TRIPS: multilateral trade-law layer shaping minimum standards and flexibilities.
- Patents matter for deep technology, pharmaceuticals, manufacturing, biotech and electronics.
- Trademarks support market identity, goodwill and commercialization.
- GIs help region-linked producers capture reputation value in domestic and export markets.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.